

CHAPTER 48.

An Act to restrict the taking of legal proceedings in respect of certain acts and matters done during the war, and provide in certain cases remedies in substitution therefor, and to validate certain proclamations, orders, licences, ordinances, and other laws issued, made, and passed, and sentences, judgments, and orders of certain courts given and made during the war. [16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Restrictions
on the taking
of legal
proceedings
against per-
sons acting
in good
faith.

1.—(1) No action or other legal proceeding whatsoever, whether civil or criminal, shall be instituted in any court of law for or on account of or in respect of any act, matter or thing done, whether within or without His Majesty's dominions, during the war before the passing of this Act, if done in good faith, and done or purported to be done in the execution of his duty or for the defence of the realm or the public safety, or for the enforcement of discipline, or otherwise in the public interest, by a person holding office under or employed in the service of the Crown in any capacity, whether naval, military, air-force, or civil, or by any other person acting under the authority of a person so holding office or so employed; and, if any such proceeding has been instituted whether before or after the passing of this Act, it shall be discharged and made void, subject in the case of a proceeding instituted before the twentieth day of July, nineteen hundred and twenty, to such order as to costs as the court or a judge thereof may think fit to make :

Provided that, except in cases where a claim for payment or compensation can be brought under section two of this Act, this section shall not prevent—

- (a) the institution or prosecution of proceedings on behalf of His Majesty or any Government department;
- (b) the institution or prosecution of proceedings in respect of any rights under, or alleged breaches of, contract, if the proceedings are instituted within one year from the termination of the war or the date when the cause of action arose, whichever may be the later;
- (c) the institution or prosecution of civil proceedings founded on negligence in respect of damage to person or property elsewhere than in a foreign country;
- (d) the institution or prosecution of civil proceedings in respect of damage to person or property in any foreign country, or of the requisitioning of property

in any foreign country, if the consent of the Attorney-General (or in Scotland of the Lord Advocate) to the institution or prosecution of the proceedings is obtained, but such consent shall not be given if the person seeking to institute or prosecute the proceeding would have had no remedy if the act complained of had been done in the United Kingdom, or if other provision has been made by treaty or convention for the settlement of claims of the class in question;

(e) the institution or prosecution of proceedings respecting the validity or infringement of a patent.

(2) For the purposes of this section, a petition of right shall be deemed to be a legal proceeding, and the proceeding shall be deemed to be instituted at the date on which the petition is presented.

(3) For the purposes of this section, a certificate by a Government department that any act, matter, or thing was done under the authority of a person so holding office or so employed as aforesaid, or was done in the execution of a duty, shall be sufficient evidence of such authority or duty and of such act, matter, or thing having been done thereunder, or in execution thereof, and any such act, matter, or thing done by or under the authority of a person so holding office or so employed as aforesaid shall be deemed to have been done in good faith unless the contrary is proved.

(4) Nothing in this section shall prejudice or prevent the institution or prosecution of proceedings for giving effect to a final judgment given before the passing of this Act by any court of final resort or by any other court where the judgment at the passing of this Act is not then the subject of a pending appeal.

2.—(1) Notwithstanding anything in the foregoing section restricting the right of taking legal proceedings, any person not being a subject of a state which has been at war with His Majesty during the war and not having been a subject of such a state whilst that state was so at war with His Majesty—

(a) being the owner of a ship or vessel which or any cargo space or passenger accommodation in which has been requisitioned at any time during the war in exercise or purported exercise of any prerogative right of His Majesty or of any power under any enactment relating to the defence of the realm, or any regulation or order made or purporting to be made thereunder, shall be entitled to payment or compensation for the use of the same and for services rendered during the employment of the same in Government service, and compensation for loss or damage thereby occasioned; or

Right to compensation for acts done in pursuance of prerogative and other powers.

(b) who has otherwise incurred or sustained any direct loss or damage by reason of interference with his property or business in the United Kingdom through the exercise or purported exercise, during the war, of any prerogative right of His Majesty or of any power under any enactment relating to the defence of the realm, or any regulation or order made or purporting to be made thereunder, shall be entitled to payment or compensation in respect of such loss or damage; and such payment or compensation shall be assessed on the principles and by the tribunal hereinafter mentioned, and the decision of that tribunal shall be final :

Provided that—

- (i) The provisions as to the statement of a case in any enactment relative to arbitrations shall not apply to any such tribunal, but, if either party feels aggrieved by any direction or determination of the tribunal on any point of law, he may, within the time and in accordance with the conditions prescribed by rules of court, appeal to the Court of Appeal, or as respects Scotland to either division of the Court of Session, and the decision of the Court of Appeal or Court of Session on any such appeal shall, with the leave of that Court but not otherwise, be subject to appeal to the House of Lords;
 - (ii) nothing in this section shall confer on any person a right to payment or compensation unless notice of the claim has been given to the tribunal in such form and manner as the tribunal may prescribe within one year from the termination of the war or the date when the transaction giving rise to the claim took place, whichever may be the later.
- (2) The payment or compensation shall be assessed in accordance with the following principles :—
- (i) Where under any regulation or order made or purporting to be made under any enactment relating to the defence of the realm, any special principle for assessment of any payment (including any price to be paid) or compensation or the rate thereof, is contained in the regulation or order, such payment or compensation shall be assessed in accordance with that principle or rate :
Provided that nothing in this provision shall prevent the tribunal in assessing the payment or compensation from taking into consideration any circumstances which, under the regulation in question, it would have been entitled to take into consideration.
 - (ii) Where the payment or compensation is claimed under paragraph (a) of subsection (1) of this section, it

shall be assessed in accordance with the principles upon which the Board of Arbitration constituted under the proclamation issued on the third day of August, nineteen hundred and fourteen, has hitherto acted, which principles are set forth in Part I. of the Schedule to this Act.

(iii) In any other case, compensation shall be assessed as follows :—

(a) If the claimant would, apart from this Act, have had a legal right to compensation, the tribunal shall give effect to that right, but in assessing the compensation shall have regard to the amount of the compensation to which, apart from this Act, the claimant would have been legally entitled, and to the existence of a state of war and to all other circumstances relevant to a just assessment of compensation :

Provided that this subsection shall not give any right to payment or compensation for indirect loss.

(b) If the claimant would not have had any such legal right, the compensation shall be assessed in accordance with the principles upon which the Commission appointed by His Majesty under Commissions dated the thirty-first day of March, nineteen hundred and fifteen, and the eighteenth day of December, nineteen hundred and eighteen (commonly known as the Defence of the Realm Losses Commission), has hitherto acted in cases where no special provision is made as to the assessment of compensation, which principles are set forth in Part II. of the Schedule to this Act.

(3) Where before the fifteenth day of April, nineteen hundred and twenty, any claim for payment or compensation has been made and disposed of by award or agreement, or has been rejected, or any payment (other than a payment expressed to be made on account) has been accepted in respect thereof, no claim for payment or compensation or further payment or compensation under this section shall be brought without the leave of the tribunal, and the tribunal shall not grant such leave except on proof of a material change of circumstances or new evidence not previously available being adduced.

(4) The tribunal for assessing payment or compensation shall, where by any of the Defence of the Realm Regulations any special tribunal is prescribed, be that tribunal, and in cases where the claim is made under paragraph (a) of subsection (1) of this section be the said Board of Arbitration, and in any other case be the said Defence of the Realm Losses Commission.

(5) A judge of the High Court of Justice or, in cases where the claim is in respect of interference with property or business in Scotland, a judge of the Court of Session, shall be president

of the Defence of the Realm Losses Commission, which Commission shall hereafter be styled and known as the War Compensation Court.

(6) A person may be compelled to attend and give evidence or produce documents in proceedings before the said Board of Arbitration or War Compensation Court in like manner as in proceedings before an arbitrator, and the Board or War Compensation Court shall have power to require any person appearing before them to give evidence on oath and to authorise any person to administer an oath for that purpose and the Board or Court shall have power to award and assess such sums by way of costs as they in their discretion may think just.

(7) The War Compensation Court may sit in more than one division at the same time, and in any such case anything which may be done to, by, or before the Court may be done to, by, or before any such division of the Court.

Savings.

3. Nothing in the foregoing provisions of this Act shall—

(a) affect or apply to proceedings in any prize court as respects any matter within the jurisdiction of the court; or

(b) affect the application of the Defence of the Realm (Acquisition of Land) Act, 1916, or the Acquisition of Land (Assessment of Compensation) Act, 1919, or the Corn Production (Amendment) Act, 1918, in any case where apart from this Act any of those Acts would apply;

(c) affect the application of section sixteen of the Regulation of the Forces Act, 1871, or of section eight of the Ministry of Transport Act, 1919.

6 & 7 Geo. 5.
c. 63.

9 & 10 Geo. 5.
c. 57.

8 & 9 Geo. 5.
c. 36.

34 & 35 Vict.
c. 86.

9 & 10 Geo. 5.
c. 50.

Validation
of customs,
proclama-
tions, &c.

39 & 40 Vict.
c. 36.

4. Any proclamation or Order in Council issued or purporting to be issued under section forty-three of the Customs Consolidation Act, 1876, during the war and before the fifteenth day of April, nineteen hundred and twenty, prohibiting or restricting the importation of any goods into the United Kingdom, and any licence granted in pursuance of any such proclamation or order shall be, and shall be deemed always to have been valid, but nothing in this section shall be construed as rendering valid the continuance in operation after the fifteenth day of April, nineteen hundred and twenty, of any such proclamation or Order in Council.

Validation of
sentences.

5. Any sentence passed, judgment given, or order made by any military court (other than a court-martial constituted in pursuance of any statute) in connection with the war, or by any court established by the authority administering any territory in the occupation of any of His Majesty's Forces during the war for the administration of justice within such territory, whether passed, given, or made during such occupation, or after such occupation has determined until the court has been

abolished or superseded by such lawfully constituted authority as may hereafter be established for the administration of such territory, shall be deemed to be and always to have been valid, and to be and always to have been within the jurisdiction of the court :

Provided that any petition from a person upon whom a sentence has been passed by any such military court shall be submitted to the Judge-Advocate-General for his opinion and report in like manner and in the like cases as if the sentence were a sentence passed by a court-martial under the Army Act.

6. All laws, ordinances, proclamations and other legislative acts made, issued, or done by the authority for the time being administering any territory in the military occupation of any of His Majesty's forces during the war for the peace, order, or good government of such territory shall be deemed to be and always to have been valid and of full effect, both during such occupation and after the determination thereof until repealed or superseded by such lawfully constituted legislative authority as may hereafter be established for that territory, notwithstanding that any such legislative act may have repealed or been inconsistent with the law previously in force in such territory.

Validation
of laws made
in occupied
territories.

7.—(1) This Act may be cited as the Indemnity Act, 1920.

(2) His Majesty in Council may, by order, apply this Act to any part of His Majesty's dominions outside the United Kingdom, except the self-governing dominions, that is to say, the Dominion of Canada, the Commonwealth of Australia (including for the purposes of this Act the territory of Papua and Norfolk Island), the Dominion of New Zealand, the Union of South Africa and Newfoundland :

Short title,
extent, and
interpreta-
tion.

Any such Order in Council applying this Act to any part of His Majesty's dominions may apply it subject to such modifications and exceptions as may appear to His Majesty necessary for adapting this Act to the circumstances of that part, and in particular any such Order in Council made in respect of India may validate any laws made for the purposes of the war by the Indian Legislature or the Governor General, and nothing done under any laws so validated or any rule made thereunder shall be invalid by reason only of the provisions of subsection (2) of section thirty-two of the Government of India Act, 1915.

5 & 6 Geo. 5.
c. 61.

(3) In this Act, "the war" means the war declared against Germany, Austria-Hungary, Turkey, and Bulgaria on the fourth day of August, the twelfth day of August, and fifth day of November, nineteen hundred and fourteen, and the fifteenth day of October, nineteen hundred and fifteen, respectively.

Section 2.

SCHEDULE.**PART I.****PRINCIPLES ON WHICH THE BOARD OF ARBITRATION HAS HITHERTO ACTED.**

The payment or compensation to be awarded for the use of a ship, or vessel, or cargo space, or passenger accommodation therein, and for services rendered shall be based on the rates and conditions contained in the Blue Book reports, or in cases of a class where those rates and conditions have not been applied on some other liberal estimate of the profits which the owner could have made if there had been no war, and shall be assessed without taking into account any increase of market values of tonnage or of rates of hire due to the war, together with, in cases where damage to or loss of the ship or vessel directly due to such use has occurred, a sum by way of compensation in respect of such loss or damage, so, however, that nothing shall be awarded for any other damage or loss incidentally caused to the owner or to other persons.

For the purposes of this Part of this Schedule, the expression "Blue Book reports" means the reports as to rates and conditions published in October, nineteen hundred and fourteen, by the sub-committee of the Board of Arbitration, subject to such increases or modifications thereof as may have been agreed to before the first day of January, nineteen hundred and twenty.

PART II.**PRINCIPLES ON WHICH THE DEFENCE OF THE REALM LOSSES COMMISSION HAS HITHERTO ACTED.**

The Compensation to be awarded shall be assessed by taking into account only the direct loss and damage suffered by the claimant by reason of direct and particular interference with his property or business, and nothing shall be included in respect of any loss or damage due to or arising through the enforcement of any order or regulation of general or local application, or in respect of any loss or damage due simply and solely to the existence of a state of war, or to the general conditions prevailing in the locality, or to action taken upon grounds arising out of the conduct of the claimant himself rendering it necessary for public security that his legal rights should be infringed, or in respect of loss of mere pleasure or amenity.

CHAPTER 49.

An Act to promote the Welfare of Blind Persons.

[16th August 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :